

Judgment Sheet
IN THE PESHAWAR HIGH COURT,
PESHAWAR
(Judicial Department)
Criminal Appeal No. 424-P/2025.

Date of hearing: 11.06.2026.

Mian Arshad Jan, advocate for the appellant.

Mr. **Mushtaq Rahim**, Addl. AG for the State.

Ms. **Marina Khan**, for LR's of the deceased.

JUDGMENT

SAHIBZADA ASADULLAH, J.- This appeal calls into question the judgment dated 14.04.2025, passed by learned Additional Sessions Judge-IV, *Nowshera*, delivered in case FIR No. 1608, dated 25.12.2021, registered under sections 302/311 PPC, read with section 15-AA, police station, *Nowshera Kalan*, District, *Nowshera*, where on conclusion of the trial, the appellant was convicted under section 302(b) PPC, and sentenced to undergo life imprisonment as *Ta'zir* for causing death of the deceased Mst. Seema. The appellant was also liable to pay compensation to the legal heirs within the meaning of section 544-A Cr. PC to the tune of Rs. 8,00,000/- (eight lac), which shall be recoverable as arrears of land revenue. In case of default of payment of compensation, the appellant-convict shall further undergo simple imprisonment for a term of six months. Under section 15-AA, the appellant

was convicted and sentenced to one year's rigorous imprisonment along with a fine of Rs. 10,000/- (rupees ten thousand). In case of default, to suffer for three months. Benefit of section 382(b) Cr. PC, was extended to him.

2. Brief facts of the prosecution case, as stated in the contents of the FIR, are that on 25.12.2021 at about 07:35 p.m., the complainant/accused facing trial, namely Jehanzeb, reported the matter at the Police Station, stating therein that he was working as a painter at Rawalpindi and had developed suspicion regarding the character of his wife. He further alleged that at the time of the occurrence, when he was entering his house, an unknown person, upon seeing him, fled away from the spot. Thereafter, he entered his house and, allegedly in the name of honour, shot and killed his wife, namely Mst. Seema, with a pistol. It was further alleged that after committing the occurrence, he placed the dead body of his wife inside a blue drum kept in the washroom and threw the pistol near the drum. On the basis of the said report, the instant FIR (Ex.PA) was registered.

3. After completion of the investigation, complete challan was put in Court against the appellant. The provisions of Section 265-C Cr.P.C were complied

with; whereafter a formal charge was framed against the appellant, to which he pleaded not guilty and claimed trial. In order to substantiate its claim, the prosecution produced and examined as many as eight (09) witnesses and thereafter closed its evidence. Statement of the appellant was recorded under section 342 Cr.P.C, wherein he professed his innocence; however, neither wished to be examined on oath under section 340 (2) Cr.P.C, nor desired to produce defence evidence. After hearing the arguments, vide the impugned judgment, the learned trial Court was pleased to convict the appellant, hence, the instant criminal appeal.

4. Heard. Record perused.

5. It was indeed a shocking incident that culminated in the brutal killing of the deceased. The matter was initially reported by the husband of the deceased, who approached the local police station and informed the police about the occurrence. On the basis of his report, the FIR was registered. Significantly, in the said report, he admitted his involvement in the occurrence, whereupon he was immediately taken into custody. Subsequently, on the pointation of the appellant, the investigating agency proceeded to the house in question, where the dead body of the deceased was recovered from a drum lying in the washroom. Following the

recovery, the necessary legal formalities were undertaken; the injury sheet and inquest report were prepared, and the dead body was thereafter dispatched for post-mortem examination. During the course of the investigation, the Investigating Officer inspected the place of occurrence and prepared the site plan. He also collected blood-stained cotton swabs from the floor of the room and secured the drum in which the unfortunate deceased had been concealed after her death. The said articles were taken into possession through proper recovery proceedings. In addition, thereto, the Investigating Officer recovered and took into possession a spent cartridge lying on the floor of the house as well as the pistol allegedly used in the commission of the offence. The father of the deceased subsequently got his statement recorded under Section 164, Cr.P.C., wherein he implicated the appellant in the commission of the offence. However, at a later stage, owing to family arrangements and domestic considerations, he exhibited reluctance to pursue the prosecution against the appellant. Upon completion of the investigation, the appellant was sent up to face trial. At the conclusion of the proceedings, he was found guilty by the learned Trial Court and was consequently convicted and sentenced to imprisonment for life.

6. There can be no denial of the fact that the gruesome occurrence shocked all and sundry. The brutality of the incident is not reflected merely from the fact that the deceased was done to death, but more significantly from the manner in which, after her killing, her dead body was concealed in a drum and remained there for approximately twenty to twenty-four hours. It was only on the following day that the appellant approached the police station, lodged the report, admitted his involvement, and thereby set the criminal law into motion. The prosecution agency thereafter undertook the requisite investigative steps, culminating in the appellant's prosecution, conviction, and sentence by the learned Trial Court. While appreciating the evidence, this Court is required not only to consider the gruesome nature of the occurrence, the concealment of the dead body in the drum, and the recoveries effected on the pointation of the appellant, but also to determine whether the learned Trial Court was justified in arriving at the conclusion of guilt and whether the evidence collected during the investigation was properly appreciated.

7. A significant legal question arises for determination: whether the maker of the FIR himself admits his involvement in the occurrence and subsequently assumes the status of an accused, whether

such a report retains its evidentiary value and legal sanctity, or whether, by reason of his becoming an accused, the report loses its efficacy altogether. Equally important is the question whether, in such circumstances, the benefit arising from any legal infirmity in the report is liable to be extended to the accused. These are the principal circumstances that require consideration, coupled with the further question whether the prosecution was able to collect independent incriminating material, particularly in the form of circumstantial evidence, capable of supporting the charge notwithstanding the legal status of the FIR. These considerations have compelled this Court to undertake a fresh appraisal and re-appreciation of the evidence available on record in order to ascertain whether the findings recorded by the learned Trial Court can be sustained. We remain conscious of the fact that it was the appellant himself who reported the occurrence and acknowledged his involvement therein. At the same time, we are equally mindful of the fact that there is no eyewitness account available on record claiming to have witnessed the deceased being put to death. The prosecution's case, therefore, largely rests upon circumstantial evidence. We also have before us the statement of the father of the deceased, who initially implicated the appellant but subsequently attempted to

extend a concession to him owing to family arrangements and domestic considerations. These, therefore, are the essential circumstances which this Court is required to examine while determining the merits of the instant appeal.

The relationship between the appellant and the deceased as husband and wife is not only admitted but also stands firmly established on the record. Therefore, before proceeding further, this Court considers it necessary to examine the legal implications arising from that relationship, as the same forms an important backdrop for the proper adjudication of the controversy in hand. However, prior to embarking upon that exercise, it would be appropriate to first determine the legal status and evidentiary value of the First Information Report lodged by the appellant himself. The resolution of this issue is of fundamental importance, for it will provide the legal framework through which the remaining evidence is to be assessed. It is only after traversing these legal stages that this Court will be in a position to ascertain whether any part of the FIR can legitimately be taken into consideration and relied upon. At first glance, the matter may appear uncomplicated; however, a closer examination reveals a more nuanced legal question. The issue is whether the entirety of the FIR becomes inadmissible merely

because the maker subsequently assumes the status of an accused, or whether those portions of the report which do not amount to a confession of guilt may still retain evidentiary relevance. Put differently, the Court is required to determine whether the inculpatory part of the report alone is liable to be excluded from consideration while the remaining portions, to the extent they contain relevant facts and information, may still be looked into for permissible purposes under the law. It is

pertinent to note that the appellant's admission of having caused the death of the deceased constitutes, in substance, a confession made before a police officer. Such a statement is nothing but an extra-judicial confession addressed to the police and, by virtue of the well-settled principles of criminal jurisprudence, carries no evidentiary value against the maker except to the limited extent recognized by law. Consequently, the confessional portion of the FIR cannot be relied upon as substantive evidence of guilt. Our attention was drawn by the learned counsel for the appellant to the judgment of the august Supreme Court, reported as 2025 SCMR 762, with the earnest submission that the ratio thereof squarely supports his contention that where the First Information Report is lodged by the accused himself, the same is liable to be excluded from consideration, and once so excluded, the prosecution case is left

without any legal substratum. To understand the essence of the matter, we would like to reproduce the relevant portion from the judgment: -

“In view of our discussion and the law on the subject referred above, we are firm in our view that to hold that, even if we accept that FIR of this case to be a report of the petitioner, the same cannot be used as admissible evidence against him. Both the Courts below have erred in law by taking into consideration the FIR as admissible evidence against the petitioner, that too, in the case of a capital charge.”

8. We have carefully examined the said reliance. With utmost respect, the judgment does not lay down any such broad or inflexible proposition. The Apex Court was not enunciating a rule of universal exclusion of an FIR merely on the ground that it emanates from the accused. On the contrary, it undertook a cautious and well-reasoned examination of the evidentiary character of such an FIR and held that only those portions which are in the nature of confessional or otherwise legally inadmissible incriminations are to be excluded from consideration, whereas the remaining admissible facts, if any, may legitimately be read in

conjunction with the rest of the prosecution evidence. Significantly, the conclusion reached by the Apex Court in the cited case was not founded solely upon the exclusion of the FIR. The Court proceeded further to re-evaluate the entire prosecution case on the basis of the remaining evidence and, upon such holistic assessment, found the prosecution version to be doubtful, thereby extending the benefit of doubt to the accused. Thus, the true ratio decidendi of the said judgment is not that an FIR lodged by an accused must be discarded in its entirety, but rather that its admissibility is subject to well-settled principles of criminal jurisprudence, and its probative value must be determined after segregating the inadmissible portions from the admissible ones, in the context of the entire evidentiary record. Viewed in this perspective, the reliance placed by the learned counsel, though ingenious, is clearly distinguishable on facts and does not support the sweeping exclusion of the FIR as contended. The judgment of the Apex Court, when read in its proper legal and factual context, leaves no ambiguity that the ultimate determination always rests upon the totality of the admissible evidence, and not upon any isolated exclusion of the FIR in toto.

The crucial question, however, is whether the exclusion of the confessional element necessarily renders the entire report devoid of legal effect, or whether the non-confessional and otherwise relevant portions of the report continue to remain admissible and capable of being taken into account. It is this delicate legal distinction that the Court is required to examine before evaluating the remaining prosecution evidence and determining whether the conviction recorded by the learned Trial Court can be sustained.

2. In order to determine the legal effect and evidentiary value of the FIR lodged by the appellant himself, it is necessary to advert to the relevant provisions of the Qanun-e-Shahadat Order, 1984, which are couched in clear, mandatory, and unambiguous language. Article 38 of the Qanun-e-Shahadat Order categorically provides: *"No confession made to a police officer shall be proved as against a person accused of any offence."* Likewise, Article 39 stipulates: *"Subject to Article 40, no confession made by any person whilst he is in the custody of a police officer, unless it be made in the immediate presence of a Magistrate, shall be proved as against such person."* The wisdom underlying these provisions is deeply rooted in the principle that no person can be compelled to furnish evidence against himself and that confessions made

before police officials are inherently susceptible to abuse, coercion, and manipulation. Consequently, the legislature has consciously deprived such statements of evidentiary value except to the limited extent expressly recognized by law. We are, therefore, of the considered view that the portion of the FIR wherein the appellant purportedly admitted having caused the death of the deceased and disclosed the motive behind the occurrence is, in substance, nothing but a confession made before a police officer. Such a statement squarely attracts the mischief contemplated by Articles 38 and 39 of the Qanun-e-Shahadat Order and cannot be treated as substantive evidence against its maker. Its legal status is not different from any other incriminating statement allegedly made by an accused before a police officer during the course of investigation. The law does not permit such a statement to be used as proof of guilt merely because it was incorporated in the form of a First Information Report. However, the matter does not end there. The exclusion of the confessional part of the report does not necessarily render the entire FIR inadmissible. Article 40 of the Qanun-e-Shahadat Order embodies a limited exception to the rule of exclusion and permits proof of only that much information supplied by an accused as distinctly relates to a fact thereby discovered. Similarly, judicial precedent has

consistently recognized that where an FIR is lodged by the accused himself, only the incriminatory or confessional portion thereof is liable to be excluded, whereas the remaining non-confessional part may still be looked into for such purposes as are legally permissible.

The august Supreme Court of Pakistan in **PLD 1965 SC 366 (Muhammad Saleh v. The State)** held that a confessional statement embodied in an FIR lodged by the accused cannot be used against him because of its confessional character. Likewise, in **PLD 1956 SC 420 (Muhammad Bakhsh v. The State)**, it was observed that an FIR made by the accused himself is liable to exclusion to the extent that it contains admissions of guilt. Furthermore, in **Mohabat v. The State (1975 PCr.L.J. 882)**, it was held that where an FIR is lodged by the accused, the incriminating part alone is inadmissible while the remaining portion may still be considered subject to the rules of evidence.

10. The principle is not peculiar to our jurisdiction. Comparable provisions contained in Section 25 of the Indian Evidence Act, 1872, have consistently been interpreted by the superior courts in India to mean that a confession made before a police officer is wholly inadmissible, except to the limited extent permitted

under the discovery rule embodied in Section 27 of the said Act. The rationale underlying both statutory regimes remains the same: to guard against the danger of convictions based on unverified confessions made before police authorities. Applying the above principles to the facts of the present case, we have no hesitation in holding that the appellant's admission regarding the commission of the homicide and the motive attributed thereto cannot be read in evidence as proof of guilt. Nevertheless, the prosecution is not rendered remediless merely because the confessional part of the FIR stands excluded. The Court is still required to examine whether the remaining circumstances, including the recoveries effected on the pointation of the appellant, the discovery of the dead body, the medical evidence, and other independent incriminating circumstances, are sufficient to sustain the conviction recorded by the learned Trial Court.

There is no cavil with the proposition that, in the present case, no eyewitness account is available. Neither any independent witness nor even a close relative of the deceased has come forward to assert that they had seen the occurrence taking place in their presence. The entire prosecution case, therefore, rests upon circumstantial evidence. It is well-settled that in such cases, each circumstance does not carry its own

independent weight in isolation. Still, the cumulative effect of all proved circumstances has to be examined in order to ascertain whether they form a complete and unbroken chain pointing unerringly towards the guilt of the accused. It is, therefore, imperative for this Court to marshal and appraise the entire body of evidence collected by the prosecution in its proper perspective, for it is only through a holistic evaluation of all incriminating circumstances that a just conclusion can be reached.

11. The Investigating Officer was examined as PW-05. In his testimony, he categorically confirmed the recovery of the dead body from the house in question, which was identified as the place of occurrence. He further corroborated that the said premises were the very house where the unfortunate incident had taken place. During his deposition, he also affirmed various recoveries effected from the same spot, including the recovery of a crime empty as well as a .32 bore pistol, which was alleged to be the weapon of offence. The Investigating Officer was duly cross-examined with regard to the surrounding circumstances of the case. However, he withstood the test of cross-examination and reiterated that the site plan was prepared on the pointation of the accused. He further maintained that the dead body was recovered from a drum lying inside the

house, pursuant to the information and indication provided during the course of the investigation. The marginal witness, PW-4, also supported the version of the Investigating Officer and confirmed the investigative proceedings conducted at the spot, thereby lending corroboration to the recovery process and the documentation prepared thereon. In these circumstances, the evidence of the Investigating Officer, duly supported by the marginal witnesses, inspires confidence and demonstrates consistency in the prosecution version with regard to the place of occurrence and the recoveries effected therefrom. The fact that the dead body and other incriminating articles were recovered from the house in question, and that such recoveries were made on the pointation attributed to the accused, assumes considerable evidentiary significance. The chain of circumstances, to this extent, remains intact and lends support to the prosecution's case, thereby strengthening the inference regarding the involvement of the accused in the commission of the offence.

12. The prosecution also examined the autopsy surgeon as PW-1, who conducted the post-mortem examination on the dead body of the deceased. The medical witness clearly opined that the death was homicidal in nature and categorically ruled out the

possibility of suicide. She further elaborated that the deceased had sustained multiple firearm injuries, thereby establishing that the cause of death was attributable to a deliberate act of violence rather than any self-inflicted harm or accidental occurrence. During her examination-in-chief as well as cross-examination, the doctor remained consistent and unshaken in her opinion. She further stated that the probable time between death and post-mortem was approximately twenty-four hours. This medical estimation, when read in conjunction with the other circumstances on record, assumes considerable significance. The timing, so determined by the medical officer, finds strong corroboration from the prosecution evidence relating to the occurrence and the subsequent reporting of the incident. When the medical assessment regarding the time since death is juxtaposed with the sequence of events narrated in the First Information Report, particularly the time of occurrence as disclosed therein and the fact that the report was lodged on the following day, a natural and consistent harmony emerges between the medical and ocular narrative presented by the prosecution. This congruence between the medical evidence and the investigative chronology substantially reduces the scope of any doubt regarding the sequence of events. It is also important to note that while the

confessional elements of the FIR have already been excluded from consideration, the factual information relating to timing, discovery of the body, and initiation of investigation remains relevant for corroborative purposes. In this backdrop, the medical testimony does not stand in isolation; rather, it provides scientific reinforcement to the prosecution's version and lends objective credibility to the overall chain of circumstances. Furthermore, the fact that the deceased had been subjected to firearm injuries, coupled with the medical opinion ruling out suicide, strengthens the prosecution's case to the effect that the death was the result of an intentional act committed by some assailant within the premises where the body was subsequently recovered. Thus, when the medical evidence is evaluated in conjunction with the other proved circumstances on record, including the place of occurrence, recoveries effected from the spot, and the conduct of the appellant, it provides substantial corroboration to the prosecution's case. The cumulative effect of these factors leaves little room for any reasonable doubt regarding the homicidal death of the deceased and further reinforces the inference emerging from the circumstantial evidence already discussed by this Court.

13. It is further significant that not only was the dead body recovered from the house in question, but blood-stained material was also collected from the same premises during the course of investigation. In addition, thereto, a pistol along with empty cartridges was recovered from the place of occurrence, which were subsequently sent to the Forensic Science Laboratory for analysis. The report received therefrom proved positive, thereby affirming that the recovered weapon had been used in the commission of the offence. This forensic linkage between the weapon, the crime empties, and the place of recovery provides strong scientific corroboration to the prosecution version and clearly indicates that the occurrence did, in fact, take place within the confines of the said house. Such forensic evidence, when read in conjunction with the recovery of the dead body and blood-stained material from the same premises, leads to a compelling inference that the assailant was present within the house at the relevant time. The positive forensic report is not an isolated circumstance; rather, it forms an integral link in the chain of circumstantial evidence that points towards the guilt of the accused. Furthermore, the medical evidence has already established the probable time between death and post-mortem examination, which, when read with the timing of the occurrence as reflected

in the record, further strengthens the prosecution's case. The appellant, being the husband of the deceased and admittedly residing in the same house, was clearly in a position to have knowledge of the occurrence soon after it transpired. Yet, despite such knowledge, there was an unexplained delay in reporting the matter to the police or taking any immediate steps to disclose the incident or seek medical assistance. This conduct assumes considerable significance in the chain of circumstances. The unnatural silence maintained by the appellant for a substantial period after the occurrence, coupled with his subsequent approach to the police station and the surrounding facts, creates a strong inference of his involvement in the occurrence. The law recognizes that the conduct of an accused both before and after the incident is a relevant circumstance under Article 21 of the Qanun-e-Shahadat Order, 1984.

14. When all these circumstances are collectively appreciated, namely, the recovery of the dead body from the house of the appellant, the recovery and forensic confirmation of the weapon of offence, the presence of blood-stained material, the medical evidence confirming homicidal death, and the conduct of the appellant in failing to promptly disclose the incident, they form a complete and consistent chain. This chain of circumstances, when viewed in its

entirety, points unerringly towards the involvement of the appellant in the commission of the offence and leaves no reasonable hypothesis consistent with his innocence. It may, however, be clarified at the outset that no presumption of guilt can be drawn merely on the basis of the relationship between the appellant and the deceased as husband and wife. The prosecution remains under a continuous and unimpeachable obligation to establish its case beyond a reasonable doubt, irrespective of the nature of the relationship inter se the parties. Nonetheless, the existence of such a relationship does assume relevance when considered in conjunction with other proved circumstances, particularly the conduct of the accused after the occurrence. In the present case, the subsequent conduct of the appellant assumes considerable importance. It has come on record, and remains largely uncontroverted, that the appellant remained silent for a substantial period of approximately twenty-four hours after the occurrence. This period of silence becomes all the more significant when viewed in the context that the medical evidence has broadly confirmed the time of death, and the appellant, being the husband and residing in the same house, was in a natural position to have knowledge of the incident at or about the time it occurred. What is particularly striking is not merely the delay in reporting

the matter to the police, but the complete absence of any immediate or spontaneous reaction which one would ordinarily expect in such circumstances. There is no material on record to suggest that the appellant made any effort to retrieve the deceased from the concealed place, to seek timely medical assistance, or to raise alarm within the locality. The failure to take such natural and instinctive steps, when seen in isolation, may not be decisive; however, when viewed cumulatively with the other circumstances already established, it acquires probative significance. The law is well settled that conduct of an accused, both before and after the occurrence, is a relevant factor under the Qanun-e-Shahadat Order, 1984. In cases resting on circumstantial evidence, post-occurrence conduct often provides a valuable lens through which the truthfulness of the prosecution version may be assessed. Where an accused remains unnaturally silent despite being in a position of close proximity to the occurrence, and fails to offer any plausible explanation for such silence, the Court is entitled to take such conduct into consideration while evaluating the chain of circumstances. At the same time, it must be emphasized that such conduct cannot, by itself, substitute proof of guilt. It is only one link in the chain and must be read in conjunction with other incriminating circumstances, such as recovery of

the dead body from the house, forensic evidence linking the weapon of offence, medical findings confirming homicidal death, and other attendant facts already discussed. When all these factors are collectively appreciated, the inference that emerges is not founded merely on suspicion or conjecture, but on a consistent pattern of conduct and objective circumstances which, when taken together, strengthen the prosecution case.

The unexplained silence, the failure to take immediate steps, and the absence of any prompt disclosure, when evaluated in the backdrop of the entire evidentiary record, provide an additional link in the chain of circumstances which the Court is required to consider while arriving at a just conclusion in the matter.

15. The recovery of the dead body from a concealed drum inside the matrimonial home, the medical evidence establishing homicidal death, the forensic and physical recoveries effected from the place of occurrence, and the conduct of the appellant before and after the incident are not isolated fragments of evidence, but interlinked pieces of a larger factual mosaic which the prosecution has sought to construct. The guiding principle in cases of circumstantial evidence is that each circumstance, though perhaps insignificant in isolation, may assume decisive probative value when viewed collectively with other established facts. The Court,

therefore, must not evaluate each circumstance in a compartmentalized manner, but must instead consider whether the totality of evidence forms such a coherent and consistent narrative that it excludes every reasonable hypothesis other than the guilt of the accused. In the present case, the question that arises for determination is whether the chain of circumstances brought on record by the prosecution is of such a nature that it merely raises suspicion or whether it advances beyond suspicion and reaches the threshold of legal proof, sufficient to indicate, with reasonable certainty, that it was the appellant alone who was responsible for the homicidal death of the deceased. If the answer is in the affirmative, then the absence of ocular testimony would not, by itself, be fatal to the prosecution case, provided that the circumstantial evidence is so strong and compelling that it forms a reliable foundation for conviction. In order to ascertain the true factual matrix of the present case, it would be appropriate to first determine an undisputed foundational fact, namely, the ownership and exclusive possession of the house where the occurrence took place. There are no two opinions on this aspect that the said house belonged to the appellant and was in his occupation along with the deceased, who was his wife. This position stands further fortified by the statement of the complainant, who is none other

than the father of the deceased, who categorically acknowledged not only the relationship between the parties but also the existence of matrimonial discord and prior altercations between the spouses, particularly on domestic and financial issues. Although the said witness later retracted from certain aspects of his earlier stance, the initial version nevertheless provides a relevant contextual background which cannot be completely ignored at this stage, at least for the purpose of appreciating the surrounding circumstances. It is also necessary to clarify that while the confessional and incriminatory portions of the FIR, to the extent they amount to admission of guilt, have already been excluded from consideration in view of the settled principles of law, the remaining parts of the report, particularly those relating to prompt reporting, conduct of the appellant, and the procedural steps taken thereafter, remain relevant for collateral purposes. The law draws a clear distinction between a confession of guilt and those factual assertions that may be used to understand the sequence of events leading to the investigation. To this extent, the Court is justified in taking into account the subsequent conduct of the appellant, including his act of accompanying the police party to the place of occurrence, which led to the recovery of the dead body from a concealed drum

within the house. The record further reflects that pursuant to such disclosure and pointation, the police recovered the dead body of the deceased from a drum lying inside the washroom of the house. The said recovery was not an isolated circumstance; rather, it was accompanied by the recovery of blood-stained material as well as the alleged weapon of offence from the same premises. These recoveries, having been effected from a place admittedly within the exclusive domain of the appellant, assume considerable significance in the chain of circumstantial evidence. It is well-settled that the discovery of a fact pursuant to information supplied by an accused, to the extent it leads to recovery of a material object, is a relevant circumstance under the law of evidence. When these circumstances are examined in their totality, namely, the admitted matrimonial relationship, the undisputed ownership and control of the house, the recovery of the dead body from a concealed place within that house, the presence of blood-stained material and weapon of offence, and the conduct of the appellant in leading the police to the place of recovery, they collectively form a coherent chain of circumstances. While no single circumstance, in isolation, may be conclusive of guilt, their cumulative effect cannot be ignored. At the same time, this Court is conscious of the well-settled

principle that suspicion, however strong, cannot take the place of proof, and that in cases resting on circumstantial evidence, the prosecution must establish a chain so complete as to exclude every reasonable hypothesis consistent with the innocence of the accused. It is, therefore, in this broader legal framework that the remaining evidence must be carefully evaluated to determine whether the inference of guilt is the only reasonable conclusion that can be drawn from the facts.

16. The argument that the accused happens to be the husband of the deceased and the father of minor children cannot, by itself, furnish a lawful ground for acquittal. Are we to become oblivious to the demands of justice merely because the conviction of the accused may leave his children without the immediate care and protection of a parent? If such a consideration alone were permitted to prevail, would it not amount to a grave miscarriage of justice? These are consequences which ought to have weighed with the accused at the time of committing the offence. The law cannot be rendered subservient to considerations of sympathy which arise only after the commission of a crime. Courts are guardians of justice, not dispensers of misplaced compassion. While the welfare of innocent children is undoubtedly a matter of concern and deserves every possible protection from the family and

society, such considerations cannot eclipse the rights of the victim nor dilute the accountability of an offender. To hold otherwise would create an impermissible precedent whereby the existence of dependents becomes a shield against criminal responsibility. Comparative jurisprudence likewise recognizes that personal hardships flowing from a conviction, including the impact upon an offender's family, cannot ordinarily outweigh the administration of justice. Courts have consistently maintained that criminal liability is determined by evidence and law, not by the collateral consequences that may befall the offender's relatives. The hardship suffered by family members, however unfortunate, is a consequence of the offender's own conduct and not a factor capable of absolving him from legal responsibility. The children of the deceased and the accused are undoubtedly innocent sufferers of the tragedy; however, the Court cannot permit their unfortunate circumstances to obscure the central question requiring determination whether the prosecution has succeeded in proving the guilt of the accused in accordance with law. Once the evidence establishes culpability, the Court would be failing in its solemn duty if it were to extend the benefit of acquittal merely on the ground that the accused has minor children who may be deprived of his company or care.

Justice must remain even-handed; otherwise, sympathy for the offender would come at the cost of justice for the victim.

17. The attending circumstances of the present case clearly establish that the prosecution has succeeded in proving the guilt of the appellant beyond a reasonable doubt. The learned trial Court has duly appreciated the evidence on record, and the impugned judgment is well-reasoned and calls for no interference. Consequently, the criminal appeal is dismissed, and the conviction is maintained.

Announced.
11.06.2026

JUDGE

JUDGE